

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HUA JIANG,

Petitioner

VS.

CHANNEY HUNG VI CHAU,

Respondent

) Case Number: FDI-15-784943

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Hua Jiang (Wife) and Respondent Channey Hung Vi Chau (Husband). The parties have three adult children. Husband is represented by attorney Maryann Dresner. Wife is self-represented.
- 2) On 5/20/2025, the parties appeared for a Judicial Settlement Conference (JSC) before Judge Luna. Wife appeared in pro per. Husband appeared with his attorney Maryann Dresner. The parties reached a full agreement. The parties agreed the property located at 745 Brunswick St. San Francisco, CA would remain in joint tenancy until both parties die, at which point it would pass to the parties' three adult children. The parties agreed they would occupy the Brunswick St. property in different sections of the home. Husband agreed to pay Wife \$2,500 per month for spousal support commencing 8/1/2025. The parties also agreed to share equally the mortgage, property taxes, property insurance, and utilities for the Brunswick St. property. The minutes for the 5/25/2025 JSC indicate the Court found the parties to have freely, knowingly, and voluntarily

1 entered into the stipulated agreement and ordered that the parties' agreement become an order of
2 the Court.

3 3) A Judgment memorializing the parties' agreements reached at the 5/20/2025 Judicial Settlement
4 Conference was filed on 4/10/2026.

5 4) On 2/17/2026 (per the Findings and Order After Hearing filed 3/9/2026), the Court adjudicated
6 Husband's Request for Order (filed 8/13/2025) wherein Husband requested that the Court set
7 aside the parties' agreement which requires the parties to share the carrying costs for the
8 Brunswick St. property equally and additionally requires Husband to pay Wife \$2,500 per month
9 for spousal support. The Court found that Husband did not meet his burden to show the Judgment
10 should be set aside and denied Husband's request. The Court stated that Husband may deduct
11 Wife's portion of the carrying costs from his \$2,500 per month spousal support payment.

12 5) Now on for hearing is Husband's Request for Order filed 5/8/2026 wherein Husband requests a
13 modification of the order requiring him to pay \$2,500 per month in spousal support to Wife.
14 Husband states Wife has not paid "any" of the carrying costs for the residence, which the parties
15 continue to both occupy in separate parts of the residence. Husband states the carrying costs for
16 the residence exceed the sum of \$5,000 per month (as the Court notes below, this is not a correct
17 statement). Husband states he can only afford to pay Wife \$1,000 per month in spousal support.
18 Husband does not state whether he has been deducting Wife's portion of the carrying costs and
19 utilities from Wife's spousal support payment, as the Court stated he could do at the prior
20 2/17/2026 hearing.

21 6) On 5/8/2026, Husband filed an Income and Expense Declaration. Husband states he is 59 years
22 old and works as a parcel delivery driver for the United Parcel Service. Husband states he pays
23 the following amounts in carrying costs each month: \$2,750 (mortgage), \$792 (real property
24 taxes), and \$1,500 (homeowner's insurance). The Court notes this \$1,500 figure for homeowner's
25 insurance is incorrect, and this error also appeared in the Income and Expense Declaration that
26 Husband filed prior to the 2/17/2026 hearing. At the prior 2/17/2026 hearing, both parties testified
27 that the payment for homeowner's insurance totals \$1,500 per year, which averages out to \$125
28 per month. Therefore, the carrying costs for the home actually total \$2,750 (mortgage) + \$792
29

(real property taxes) + \$125 (homeowner's insurance) = \$3,667 per month, with each party's share being \$1,833.50 per month.

- 7) On 5/8/2026, Husband filed a Request to Reschedule the hearing on Husband's Request for Order, which was originally scheduled for 7/30/2026. On 6/26/2026, the Court granted Husband's request and rescheduled the hearing to 9/1/2026.
- 8) Per the Proof of Service filed 7/2/2026, Husband's Request for Order, Income and Expense Declaration, Order on Request to Reschedule Hearing, blank Responsive Declaration, blank Income and Expense Declaration, and Tentative Ruling Instructions were mailed to Wife at the Brunswick St. address. The Court notes that at the prior 2/17/2026 hearing, Wife appeared and confirmed she was still living at the Brunswick St. property.
- 9) Wife has filed no pleadings in response to Husband's 5/8/2026 Request for Order.

B. Findings and Order

- 1) A modification of a spousal support order may be granted only if the party seeking the modification shows a material change of circumstances since the most recent order. Marriage of West (2007) 152 Cal.App4th 240, 246; Marriage of Tydlaska (2003) 114 Cal.App.4th 572, 575. A material change of circumstances is required even if the prior spousal support order was established by the parties' agreement. Marriage of McCann (1996) 41 Cal.App.4th 978, 982. Absent a change of circumstances, a motion for modification would be an "impermissible collateral attack on a prior final order." Marriage of Khera & Sameer (2012) 206 Cal.App.4th 1467, 1479.
- 2) Husband has not cited a material change in circumstance warranting a modification of the spousal support order contained within the Judgment. Husband's request to modify the spousal support order is denied.
- 3) Moreover, the Court finds that Husband can afford to pay Wife \$2,500 per month in spousal support plus his one-half share of the carrying costs for the residence. The paystubs attached to Husband's Income and Expense Declaration show that, as of 4/4/2026, Husband had received \$41,385.70 in gross year-to-date pay. The paystubs reflect \$166.14 in year-to-date parking deductions, \$9,996.62 in year-to-date tax deductions, and \$2,042.06 in other deductions, resulting in year-to-date net pay of \$29,180.88, which averages out to net monthly income of \$9,442. As

1 for Husband's monthly expenses, they total \$1,833.50 (Husband's one-half share of the carrying
2 costs) + \$2,500 (spousal support) + \$500 (maintenance) + \$872 (eating out) + \$400 (cell phone) +
3 \$50 (laundry and cleaning) + \$42 (clothes) + \$400 (entertainment, gifts, vacation) + \$520 (auto
4 expenses) + \$599 (credit card payments) + \$999 (car payment) = \$8,715.50. Husband's average
5 net monthly income of approximately \$9,442 therefore exceeds his stated monthly expenses,
6 including his \$2,500 monthly spousal support obligation and his one-half share of the carrying
7 costs, by approximately \$726.50 per month.

8 4) Husband's attorney shall prepare the Findings and Order After Hearing.

9 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).